

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

202100555128CUPO: Mcphail vs. Mackey

07/23/2026 in Department 21

Motion to Bifurcate Liability from Damages for Mackey, Thomas W

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant’s Motion to Bifurcate Liability from Damages (*Unopposed*)

Tentative: Defendant Thomas W. Mackey d/b/a T.W. Mackey Electric’s Motion to Bifurcate Liability from Damages is DENIED.

The motion is timely and properly served. No opposition was filed.

Under CCP §§ 598 and 1048(b), the Court may order separate trials where bifurcation will promote convenience, avoid prejudice, or further the economy and efficiency of the litigation. The principal purpose of bifurcation is to “expedite and simplify the presentation of evidence.” (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 888.)

Here, Defendant has not shown that judicial economy and efficiency weighs in favor of bifurcation. The case is set for a 5-day jury trial. Here, having a trial on liability does not simplify the issues. Part of the liability analysis is whether the Defendant’s conduct was a substantial factor in causing harm. If liability is found, there will necessarily be overlap. McPhail must be permitted to present sufficient evidence during the liability phase to establish that the electrical incident actually caused injury, because causation and harm are elements of negligence. Additionally, the jury will be forced to remain for an unexpected extended amount of time to hear phase two on injuries and damages.

Effect of the Prior Appeal: Mackey argues that the Court’s prior grant of summary judgment suggests he is likely to prevail on liability. That conclusion does not follow from the procedural history. Although the trial court initially granted summary judgment, the Court of Appeal reversed because triable issues of fact remained concerning Mackey’s alleged negligence, the

applicability of the completed-and-accepted doctrine, and causation. The appellate court also identified conflicting expert evidence that must be resolved by the trier of fact.

That reversal therefore establishes only that liability presents factual issues requiring trial; it does not indicate that either party is more likely to prevail on those issues. The prior summary judgment ruling does not support an inference that Mackey is likely to prevail on liability. That judgment was reversed on appeal because triable issues remained concerning negligence, the completed-and-accepted doctrine, causation, and conflicting expert evidence. The reversal establishes only that those issues require trial, not that either party is more likely to prevail.

Moving party to give notice.